



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11354

DEC - 8 1994

400 Seventh Street S.W.
Washington, D.C. 20590

EXPIRATION DATE: January 8, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Merichem Company
Houston, TX
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of a residual amount of a combustible liquid, n.o.s., in a DOT Specification 111A100W1 tank car, with defective interior heater coils, which will remain capped to prevent leakage while in transportation.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 174.9(b) and 174.67(k)
5. BASIS. This exemption is based on Merichem Company's application of December 6, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Disulfide oil solutions/ Combustible, liquid, n.o.s.	Class 3	NA 1993	III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 111A100W1 tank car, with a defective interior heater coil which will remain capped to prevent leakage during transportation.
 - b. MARKING - The provisions of 49 CFR Part 107, Appendix B, Subpart B are hereby waived.

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8. SPECIAL PROVISIONS.

- a. Car must be transported to the nearest qualified repair facility.
- b. Interior heater coil caps must remain in place at all times while car is in transportation until reaching repair facility.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

- a. The Federal Railroad Administration is to be notified if any unusual incident occur, such as loss of product, during transportation under the terms of this exemption. This notification should be directed to:

Federal Railroad Administration
Office of Safety, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9252 or 366-0523

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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